



CHAPTER xv.

An Act to validate past sales of the Felixstowe Pier undertaking to authorise future sales thereof to make further provision for the finance of the said undertaking to provide for the revision of the authorised rates and for other purposes. [18th July 1947.]

WHEREAS by the Felixstowe Pier Order 1900 confirmed by the Pier and Harbour Confirmation (No. 2) Act 1900 (in this Act referred to as "the Order of 1900") the Coast Development Company Limited (in this Act referred to as "the development company") were authorised to construct maintain and regulate a pier and works in the urban district of Felixstowe and Walton in the county of Suffolk (now the urban district of Felixstowe) and were constituted the undertakers for carrying the Order of 1900 into execution:

63 & 64 Vict.
c. cxciii.

And whereas in pursuance of the powers conferred upon them by the Order of 1900 the development company constructed the pier known as Felixstowe pier and certain works connected therewith:

And whereas by a conveyance dated the fourteenth day of July one thousand nine hundred and six the development company then in liquidation and the liquidators thereof purported to convey to the Coast Development Corporation Limited (inter alia) the pier undertaking of the development company together with the benefit of the Order of 1900 and certain pieces of land at Felixstowe therein referred to together with the pier erected on the same pieces of land or some of them and the pavilions shops buildings and erections fixtures

and other articles whether fixed or not then or at any time thereafter in about or upon the said pieces of land or any of them and together with all tolls rates rents and other moneys payable to the development company in connection with the said pier or any other part of the premises:

And whereas by a second conveyance dated the nineteenth day of May one thousand nine hundred and twenty-two the said Coast Development Corporation Limited then in liquidation purported to convey to East Coast Piers Limited (inter alia) certain pieces of land at Felixstowe therein referred to (except a portion of such land which had been conveyed to the Felixstowe and Walton Urban District Council by an indenture of conveyance dated the third day of July one thousand nine hundred and twelve) together with the pier erected on the said pieces of land or some of them and the pavilions shops buildings erections and fixtures in about and upon the said piece or pieces of land and together with all tolls rates rents and other moneys payable to the said Coast Development Corporation Limited in connection with the said pier or any other part of the premises together with the benefit of the Order of 1900:

And whereas by a third conveyance dated the nineteenth day of March one thousand nine hundred and twenty-six the said East Coast Piers Limited purported to convey to Coast Properties Limited (in this Act referred to as "the Properties Company") (inter alia) the pier undertaking of the vendor at Felixstowe together with the benefit of the Order of 1900 and certain pieces of land at Felixstowe therein referred to (except the said portion of land conveyed to the Felixstowe and Walton Urban District Council as aforesaid) the pier erected on the said pieces of land or some of them and the pavilions shops buildings erections and fixtures in about or upon the said pieces of land together with all tolls rates rents and other moneys payable to the vendor in connection with the premises:

And whereas the Properties Company are now in possession of Felixstowe Pier and the works connected therewith and are carrying on the undertaking authorised by the Order of 1900:

And whereas no power to sell the said undertaking was conferred by the Order of 1900 and it is expedient that the provisions in that behalf contained in this Act should be enacted:

And whereas it is expedient to make further provision for the finance of the undertaking and to provide for the revision of the rates authorised by the Order of 1900:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1.—(1) This Act may be cited as the Felixstowe Pier Act 1947. Short and collective titles.

(2) The Felixstowe Pier Order 1900 confirmed by the Pier and Harbour Orders Confirmation (No. 2) Act 1900 and this Act may be cited together as the Felixstowe Pier Order and Act 1900 and 1947.

2. The Harbours Docks and Piers Clauses Act 1847 (except sections 12 and 13 16 to 19 and 84 to 87) so far as applicable to the purposes of this Act is (except where inconsistent with the Order of 1900 or this Act) incorporated with and forms part of this Act. Incorporation of Harbours Docks and Piers Clauses Act 1847.
10 & 11 Vict.
c. 27.
Interpretation.

3. In this Act—

“ the Properties Company ” means Coast Properties Limited;

“ the development company ” means the Coast Development Company Limited;

“ company ” has the meaning assigned to that word in and for the purposes of the Companies Act 1929; 19 & 20 Geo. 5.
c. 23.

“ the Order of 1900 ” means the Felixstowe Pier Order 1900;

“ the pier ” means Felixstowe pier as constructed by the development company and the land buildings works, plant property and conveniences connected therewith or any part thereof as the case may be;

“ the undertaking ” means the undertaking in connection with and including the pier as for the time being existing;

“ the undertakers ” means the development company or other person for the time being carrying on the undertaking (including the Properties Company);

“ authorised rates ” and “ authorised rate ” mean respectively the rates or rate which the undertakers are for the time being authorised to levy demand and recover in pursuance of the Order of 1900;

“ the Minister ” means the Minister of Transport;

“ the council ” means the urban district council of Felixstowe.

As to sale of
undertaking.

4. Subject in the case of a company to the powers and provisions of their memorandum and articles of association the undertakers shall have and shall be deemed always to have had power to sell the undertaking and any purchaser to the extent authorised by his conveyance shall have and be deemed always to have had and may and shall be deemed always to have been able to exercise all or any of the powers conferred on the undertakers by any Act or Order for the time being relating to the undertaking and shall be and shall be deemed always to have been subject to all the duties liabilities and obligations to which the undertakers are or were subject:

Provided that any sale of the undertaking after the date of the passing of this Act shall be subject to the previous consent of the Minister and shall be upon such terms conditions and restrictions as may be approved by him.

Plans of
buildings on
pier to be
submitted
to council.

5.—(1) Before commencing the construction of any building on the pier the company shall submit to the council for their reasonable approval plans sections and elevations of such building and a description of the materials to be used in the construction thereof Provided that the council shall not require the use of materials which are unsuitable for the construction of buildings on piers Provided also that if within six weeks after the giving of such notice the council shall not have disapproved such plans sections elevations and description they shall be deemed to have approved thereof.

(2) If within six weeks after such notice shall have been given the council shall disapprove the said plans sections elevations or description any difference between the council and the company with regard to such plans sections elevations or description shall be referred to and determined by an architect to be appointed by agreement between the parties or failing agreement on the application of either party (after notice in writing to the other) by the President of the Royal Institute of British Architects and the provisions of the Arbitration Acts 1889 and 1934 or any statutory modification or re-enactment thereof for the time being in force shall apply to any such reference.

(3) Any such building shall be constructed only according to such plans sections elevations and description as shall be approved or deemed as aforesaid to be approved or determined by arbitration as hereinbefore provided.

(4) In this section—

“ construction ” includes reconstruction;

“ building ” includes a structure.

6. The pier shall be deemed to be for all purposes within the parish and urban district of Felixstowe in the county of East Suffolk.

Pier to be within parish and urban district of Felixstowe.

7.—(1) The undertakers may on the security of the undertaking or the authorised rates borrow and re-borrow or expend out of their own money at interest not exceeding without the consent of the Minister five per centum per annum—

Power to borrow.

(a) such sum as may be required for the payment of the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto;

(b) with the consent of the Minister such further sum as may from time to time be required for any of the purposes of the undertaking for which capital may properly be applied and not otherwise:

Provided that the total amount borrowed under the provisions of this section shall not exceed fifty thousand pounds or in the case of a company such less amount as may be authorised by their memorandum and articles of association.

(2) The undertakers on making any application to the Minister for his consent to pay a rate of interest exceeding five per centum per annum shall serve notice of the application on the council who may make representations to the Minister with respect to the application at any time within twenty-eight days from the service of the notice.

8. The money borrowed under this Act or under the Order of 1900 shall be applied only to the purposes of the Order of 1900 or of this Act for which capital money may properly be applied and not otherwise.

Application of money borrowed.

9. Where the undertakers are a company any person advancing money to them shall not be bound to require any further or other evidence of their power to borrow the money advanced by such person than such as is afforded—

Protection of lenders.

(a) by a certificate signed by two of the directors and countersigned by the secretary of the undertakers that the undertakers are not exceeding the powers of borrowing conferred upon them by their memorandum and articles of association and this Act; and

(b) by an inspection of the register of charges by the Companies Act 1929 required to be kept by the undertakers.

Appointment
of a receiver.

10.—(1) The holders of any securities given in respect of money borrowed under this Act may enforce payment of arrears of interest or principal or principal and interest due on their securities by the appointment of a receiver.

(2) In order to authorise the appointment of a receiver in respect of arrears of interest or principal or principal and interest the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth of the total amount of the money borrowed under this Act or the Order of 1900 and not paid off.

8 & 9 Vict.
c. 16.

(3) Sections 53 and 54 of the Companies Clauses Consolidation Act 1845 are incorporated with this Act and in those sections as so incorporated any reference to the special Act shall be construed as a reference to this Act.

Revision
of rates.

11.—(1) If it is represented by application in writing to the Minister—

- (a) by any chamber of commerce or shipping or any representative body of traders or any person who in the opinion of the Minister is a proper person for the purpose; or
- (b) by the undertakers;

that in the circumstances then existing the authorised rates or any of them should be revised the Minister if he thinks fit may make an order revising the authorised rates referred to in the application or any of them and may fix the date as from which such order shall take effect and such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section.

(2) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(3) Where upon an application for revision of authorised rates or an authorised rate an order has been made or the Minister has decided not to make an order no further application for a revision of the rates or rate to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(4) Before making an order under subsection (1) of this section the Minister shall cause an inquiry to be held in reference thereto and the provisions of subsections (2) to (5) of

section 290 of the Local Government Act 1933 shall apply to such inquiry as if it were an inquiry held in pursuance of subsection (1) of that section and the undertakers were a local authority Provided that in cases where no objection has been made to the application or where any objection which has been made has either been withdrawn or appears to the Minister to be of a trivial nature the Minister may if he thinks fit dispense with such inquiry.

12. Paragraph (2) and section 42 (Application of rates &c. received) of the Order of 1900 shall be read and have effect as if for the words " under this Order " there were substituted the words " under any Act or Order for the time being relating to the company." Amendment of section 42 of Order of 1900.

13.—(1) The Properties Company shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register it If such copy is not so delivered within three months from the passing of this Act the Properties Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Properties Company who knowingly and wilfully authorises such default shall incur a like penalty. Copy of Act to be registered.

(2) Every penalty under this section shall be recoverable summarily.

(3) There shall be paid to the registrar by the Properties Company on such copy being registered the fee of five shillings.

14. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939 or under that Act as extended by any subsequent enactment including the Supplies and Services (Transitional Powers) Act 1945 or so long as the borrowing of money in Great Britain without the consent of the Treasury is prohibited by an order under section 1 of the Borrowing (Control and Guarantees) Act 1946 it shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act as hereinafter defined) without such consent. Saving for powers of Treasury.
2 & 3 Geo. 6.
c. 62.
9 Geo. 6.
c. 10.
9 & 10 Geo. 6.
c. 58.

Repeal.

15. The following provisions of the Order of 1900 are hereby repealed:—

Section 36 (Board of Trade may reduce rates); —

Section 37 (Power to borrow money);

Section 38 (Application of money borrowed);

Section 39 (Payment of arrears of interest and principal may be enforced by appointment of receiver);

Section 40 (Appointment of a receiver);

Section 41 (Amount to authorise application for receiver).

Costs of Act.

16. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Properties Company.

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